

**Judge Mosbarger – Law & Motion – Wednesday, August 26, 2026 @ 9:00 AM  
TENTATIVE RULINGS**

**1. 22CV01506 VAIL, NATHAN ET AL v. ANDERSON BURTON CONSTRUCTION, INC ET AL**

*EVENT: Motion for Determination of Good Faith Settlement Pursuant to Code of Civil Procedure §877.6(a)(2) by Cross-Defendant Bill Biggs Plumbing*

The Court finds that the settlement between Cross-Defendant Bill Biggs Plumbing and Cross-Complainant Anderson Burton Construction Inc., was made in good faith pursuant to *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488. The Motion for Determination of Good Faith Settlement Pursuant to *Code of Civil Procedure* §877.6(a)(2) by Cross-Defendant Bill Biggs Plumbing is granted, and the Court will sign the form of order submitted.

**2. 22CV01639 C D v. COUNTY OF BUTTE**

*EVENT: Defendant County of Butte's Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication*

On the Court's own motion, this matter is continued to September 23, 2026 at 9:00 a.m.

**3. 22CV01862 D, M v. COUNTY OF BUTTE**

*EVENT: Defendant County of Butte's Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication*

On the Court's own motion, this matter is continued to September 23, 2026 at 9:00 a.m.

**4. 22CV02762 PRYDE, DONALD C v. PRYDE, GARY A ET AL**

*EVENT: Defendant's Motion to Confirm Sale, and Approve Referee's Report*

The Court will make inquiry as to any overbids on the subject real property, if none are received the Court will grant Defendant's Motion to Confirm Sale and Approve Referee's Report, vacate the Status Conference on November 18, 2026, and sign the form of order submitted.

///

**5. 24CV01149 LOBO, CLINT v. STEVEN MADISON, TRUSTEE OF THE GENE N & HELEN C MADISON FAMILY TRUST**

*EVENT: Motion for Summary Judgment*

California Rule of Court, Rule 3.1113 states in pertinent part as follows:

“(d) Length of memorandum

... In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. ...

(g) Effect of filing an oversized memorandum

A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.”

Here, the Opposition is 29 pages in total, 24 pages not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. Likewise, the Reply is 34 pages in total, 30 pages not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. Thus, both the Opposition and Reply are in violation of California Rules of Court, Rule 3.1113, and substantially so.

Butte County Local Rule 3.11B. provides that “[t]he Court may, in its discretion, refuse to consider late filed papers or may impose sanction, including monetary sanctions...”

However, in its discretion, the Court has considered the merits of the Motion.

Defendant Steven Madison, as Trustee of the Gene N. & Helen C. Madison Family Trust’s (“Defendant” herein) Request for Judicial Notice is granted.

Plaintiff Clint Lobo’s (“Plaintiff” herein) Evidentiary Objections to the Declarations of Steven Madison, Amanda J. Granger, and Michael McCrady are overruled. Defendant’s Evidentiary Objections to the Declaration of Clint Lobo are overruled.

The Court finds that a triable issue of material fact exists as to whether Plaintiff paid the promissory note in full [see Undisputed Material Fact Nos. 8, 12, 17, 18, 21, 29, 32; Plaintiff’s Additional Undisputed Material Fact Nos. 3-9]. Defendant/Cross-Complainant Steven Madison, Trustee of the Gene N & Helen C Madison Family Trust’s Motion for Summary Judgment is denied. Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.